

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Tiffany Dempsey	Team: Squad #14	CCRB Case #: 201508165	☐ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 09/26/2015 4:35 PM	Location of Incident: Jackie Robinson Parkway and Bushwick Avenue	Precinct: 75	18 Mo. SOL 3/26/2017	EO SOL 3/26/2017	
Date/Time CV Reported Sat, 09/26/2015 5:35 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 09/26/2015 5:35 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gerard Latour	19423	940361	HWY DST

Officer(s)	Allegation	Investigator Recommendation
A.POM Gerard Latour	Off. Language: PO Gerard Latour made remarks to § 87(2)(b) and § 87(2)(b) based upon race.	

Case Summary

On September 24, 2015, at approximately 4:35 p.m., at the intersection of Jackie Robinson Parkway and Bushwick Avenue in Brooklyn, PO Gerard Latour of the Highway District stopped § 87(2)(b)'s vehicle in which his wife, § 87(2)(b) and two younger children, § 87(2)(b) and § 87(2)(b) were also occupants. During their interaction PO Latour allegedly made an offensive remark to § 87(2)(b) and § 87(2)(b) (**Allegation A**). § 87(2)(b) was issued three summonses for § 87(2)(b).

Mediation, Civil and Criminal History

- § 87(2)(b) rejected mediation; therefore, this complaint was unable to be mediated.
- As of November 18, 2015, an inquiry sent to the NYC's comptroller's office regarding a possible Notice of Claim related to this incident is still pending.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by and/or involving § 87(2)(b) and § 87(2)(b) (Board Review 02).
- PO Latour has been a member of service for nine years, and there are no substantiated allegations against him. § 87(2)(b), § 87(2)(g)

[REDACTED]
[REDACTED]
[REDACTED] In case 201303345 a force allegation was exonerated against PO Latour and a discourteous language allegation was unfounded.

Potential Issues

- § 87(2)(b) missed and rescheduled multiple appointments before providing a verified statement which delayed the investigation by approximately one month.
- PO Latour is a member of the Collusion Technican Group of the Highway Patrol Unit, and is not required to wear a body-worn camera or microphone (Board Review 03). § 87(2)(b) provided a brief recording to the CCRB which shows PO Latour walking away from the vehicle, and the passengers of the vehicle talking amongst themselves while PO Latour is not present (Board Review 04). PO Latour believed § 87(2)(b) recorded the entire incident and should have additional recordings; however, § 87(2)(b) did not provide any further video or audio footage of the incident, and the conversation in which the allegations allegedly occurred is not captured on the video footage § 87(2)(b) did provide.

Findings and Recommendations

Allegations not pleaded

- § 87(2)(g)
[REDACTED]
[REDACTED] It is undisputed by all parties that § 87(2)(b)'s vehicles' windows are tinted (Board Review 03, 05, 06), and photographs of his vehicle, provided by § 87(2)(b) confirm the vehicle's windows are tinted (Board Review 07). § 87(2)(g)

§ 87(2)(g) .

Allegation A – Offensive Language: PO Gerard Latour made remarks to § 87(2)(b) and § 87(2)(b) based upon race.

§ 87(2)(b) and § 87(2)(b) both alleged that while PO Latour was at their vehicle, he used the term, “niggers,” while inquiring about where they were going (Board Review 05, 06). § 87(2)(b) testified that it was said in a normal tone, seemingly directed toward everyone. § 87(2)(b) testified that it was said softly, just loud enough for him to hear. § 87(2)(g)

PO Latour testified that he did not ask, “Where are you niggers going,” or “Where are you niggers off to,” as alleged, and absolutely did not refer to any individual inside the vehicle as a “nigger” (Board Review 03).

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) who at the time were § 87(2)(b) and § 87(2)(b), respectively, were not initially interviewed. § 87(2)(g)

§ 87(2)(b). When the possibility of interviewing the children was discussed with § 87(2)(b) he expressed reservations, but agreed to consider it and consult with § 87(2)(b). After doing so, however, he said that § 87(2)(b) did not want the children interviewed. § 87(2)(g)

§ 87(2)(g)

Squad: 14

Investigator: _____
Signature Print Date

Pod Leader: _____

	Title/Signature	Print	Date
Attorney:	_____	_____	_____
	Title/Signature	Print	Date